

POLITY 22 - SPECIAL PROVISIONS

PART XXI | ARTICLES 371-371J | BOUNDED ARTICLE 370/35A BRIDGE

State -> Article -> amendment -> actor -> mechanism -> limit

Constitutional and current control checked 7 September 2026

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CORE CONCEPT AND OWNERSHIP

PART XXI -> temporary + transitional + State-specific special provisions
ONE UNION -> ordinary federal rules + purpose-specific constitutional differences
ASYMMETRY != identical autonomy: classify each clause by State, protected field and actor
OWNER -> Articles 371-371J + bounded Article 370/35A current-law bridge
CROSS-LINK ONLY -> Fifth/Sixth Schedules (Topic 26); special classes (Topic 53)
ANSWER LINE -> Indian unity accommodates difference through bounded constitutional design.

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ORIGIN AND TIMELINE

1956 7th Amendment s.22 substitutes Article 371; 1960 Bombay reorganisation adapts it
1962 13th -> 371A | 1969 22nd -> 371B | 1971 27th -> 371C
1973 32nd -> 371D/371E and removes Andhra Pradesh from Article 371
1974 35th -> Sikkim associate-State phase | 1975 36th -> Statehood + 371F
1986 53rd -> 371G | 1986 55th -> 371H | 1987 56th -> 371I
2012 98th -> 371J; effective 1 Oct 2013 | 2014 s.97 adapts 371D
2019 Article 370 orders/reorganisation | 2023 Supreme Court judgment.

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ARTICLE 371 - REGIONAL EQUITY

PRESIDENTIAL ORDER may assign Governor special responsibility for:
MAHARASHTRA -> Vidarbha + Marathwada + rest of Maharashtra
GUJARAT -> Saurashtra + Kutch + rest of Gujarat
MECHANISM -> separate boards -> annual Assembly report -> equitable development funds
-> adequate technical/vocational facilities + State-service opportunities
LIMIT -> constitutional authority does not prove a board is currently constituted.
TRAP -> Article 371 is a development-equity device, not a customary-law veto.

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ARTICLE 371A - NAGALAND

ASSEMBLY-RESOLUTION SHIELD covers only:
1 religious/social practices | 2 customary law/procedure
3 civil/criminal justice involving decisions under customary law
4 ownership/transfer of land AND its resources
SEPARATE CLAUSES -> earmarked Union grants; conditional Governor law-order responsibility
TUENSANG -> 35-member Regional Council and special administration for base ten years
from 1 Dec 1963, extendable by notified Governor action
LIMIT -> historical transition is not a perpetual general veto over Parliament.

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COMMITTEE MODELS - 371B AND 371C

371B ASSAM -> President may create Assembly committee:
members elected from Sixth-Schedule Part I tribal areas + specified other MLAs
and may modify Assembly procedure for its functioning
371C MANIPUR -> President may create Hill Areas Committee and modify business/procedure
Governor -> special responsibility + annual/on-demand report to President
Union -> may direct State on administration of declared Hill Areas
TRAP -> legislative committees are not Sixth Schedule autonomous councils.

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ARTICLE 371D/371E - LOCAL OPPORTUNITY

371D -> President may secure equitable public-employment and education opportunity
TOOLS -> local cadres + local areas + residence/study-based preference or reservation
2014 AP Reorganisation Act s.97 -> applies framework separately to AP and Telangana
TELANGANA -> G.S.R. 820(E), 29 Aug 2018; republished G.O.Ms.124, 30 Aug 2018
ANDHRA PRADESH -> S.O.5777(E), 15 Dec 2025; republished G.O.Ms.45, 20 Apr 2026
371E -> Parliament may establish a Central University in Andhra Pradesh
TRAP -> 371E is enabling power, not the local-reservation mechanism.

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TRIBUNAL HISTORY UNDER ARTICLE 371D

371D(3)-(4) -> President could constitute tribunal for specified service matters
371D(5) -> State confirmation/annulment mechanism
P. SAMBAMURTHY (1987) -> clause (5), including proviso, void:
executive veto over adjudication violated rule of law/basic structure
371D(7) text excluded High Court superintendence; later tribunal doctrine restored review
371D(8) -> President may abolish tribunal and transfer pending cases
G.S.R. 30(E), 14 Jan 2020 -> AP Administrative Tribunal abolished
LIMIT -> tribunal history must not be presented as the current opportunity framework.

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ARTICLE 371F - SIKKIM INTEGRATION

35th Amendment, 1974 -> Article 2A + old Tenth Schedule: associate-State phase
36th Amendment, 1975 -> full Statehood; omitted associate-State scheme; inserted 371F
CURRENT CORE -> Assembly at least 30; Parliament may protect population sections
CONTINUITY -> existing High Court, courts, authorities, property and laws continued
GOVERNOR -> discretion for peace and equitable advancement, subject to President
PRESIDENT -> two-year adaptation power for old laws; extension of other State enactments
R.C. POUDYAL (1993) -> historically tailored representation largely sustained.

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371G, 371H AND 371I

371G MIZORAM -> Assembly resolution needed for Parliamentary laws on:
Mizo practices | customary law/procedure | customary justice | land ownership/transfer
PRE-COMMENCEMENT CENTRAL ACTS saved; Assembly minimum 40
371H ARUNACHAL -> Governor consults ministers, then individual judgment on law/order;
President may terminate responsibility; Assembly minimum 30
371I GOA -> Assembly minimum 30; no land/custom shield or Governor discretion
TRAP -> similar Statehood-era origins did not produce identical constitutional designs.

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ARTICLE 371J - KALYANA KARNATAKA

Constitutional text names HYDERABAD-KARNATAKA; official current usage: KALYANA KARNATAKA
PRESIDENTIAL ORDER may assign Governor responsibility for:
development board + annual Assembly report + equitable funds + opportunity
371J(2) may reserve a proportion of regional education/training seats
and identified State-controlled posts for persons belonging by birth or domicile
2013 State notifications operationalise employment/admission/certificate machinery
LIMIT -> Constitution fixes no universal percentage; current rules/orders control details.

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ARTICLE 370/35A - BOUNDED OWNER BRIDGE

1947 accession -> Article 370 application mechanism -> 1954 Order inserts Article 35A
5 Aug 2019 C.O.272 applies Constitution comprehensively and supersedes 1954 framework
6 Aug 2019 C.O.273 renders Article 370 inoperative except modified clause (1)
31 Oct 2019 -> J&K UT with legislature + Ladakh UT without legislature
IN RE ARTICLE 370 (11 Dec 2023) -> temporary character; no separate sovereignty;
Article 367 substitution ultra vires to stated extent; result and C.O.273 upheld
LIMIT -> J&K State-to-UT validity not finally decided; Ladakh creation upheld.

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TRAPS AND MAINS ANSWER SPINE

NEVER FLATTEN -> development | consent shield | committee | local opportunity
integration | law-order responsibility | minimum Assembly size
NEVER MERGE -> constitutional text | amendment | Presidential order | statute
State implementation | judgment | dated current status
ANSWER -> define asymmetry -> timeline -> classify provision -> name actor
-> decode mechanism -> cite amendment/order/case -> evaluate benefit
-> qualify implementation, equality and judicial-review limits
CONCLUSION -> calibrated difference can deepen unity when transparent and reviewable.